



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 5876 (EXTENSION)
FIFTH REVISION August 8, 1985

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 5876 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn L. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

July 2, 1996
(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

FMC Corporation
Philadelphia, PA

May 3, 1996



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 5876
(FIFTH REVISION)

1. FMC Corporation, Philadelphia, Pennsylvania, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages of a Class B poison for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes several alternative packaging methods to those provided in the regulations and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on FMC Corporation's application dated April 22, 1985, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and Class). Furadan technical, and Furadan manufacturing base; classed as Poison B.

4. PROPER SHIPPING NAME (49 CFR 172.101). Carbamate pesticide, solid, n.o.s. or Carbofuran, as appropriate.

5. REGULATION AFFECTED. 49 CFR Part 107 Appendix B, 173.365; 178.241.

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo vessel, motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging Method A:

i. Packaging prescribed is DOT Specification 44D multiwall paper bag not over 55.1-pounds net weight. Where extensible kraft is used, the minimum total basis weight must be 260 pounds and the outer wall may be no less than 60-pound basis weight.

ii. Bags may be overpacked, not to exceed two bags in a strong outside fiberboard box, subject to the requirements of 49 CFR 173.25(a) and, as such, may be shipped in less than fully loaded freight containers, LTL or LCL.

b. Packaging Method B:

i. Alternative packaging prescribed is non-DOT Specification pinch bottom, heat-sealed multiwall bag, not over 55.1-pounds net weight. Six ply bag is to be constructed as follows: 5-mil low density polyethylene (PE) 50-pound natural kraft 50-pound natural kraft 4-mil "Valeron" (bi-axially oriented, high density PE, cross laminated) 50-pound natural kraft 60-pound natural kraft wet strength. Prepared as for shipment, bag must be capable of withstanding the test requirements of 49 CFR 178.241-4.

ii. Bags may be overpacked not to exceed 21 bags in an outside wooden box, subject to the requirements of 49 CFR 178.25(a) and, as such, may be shipped in less than fully loaded freight containers, LTL or LCL. Wooden (wirebound) box is to be constructed as depicted in Exhibit D, enclosed in FMC's application dated April 6, 1976.

c. Except as provided in paragraphs a(ii) and b(ii) above, shipments are authorized only in fully loaded freight containers, truckloads and carloads, which must be loaded by the consignor and unloaded by the consignee.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reshipe them pursuant to the provisions of 49 CFR 173.22a.

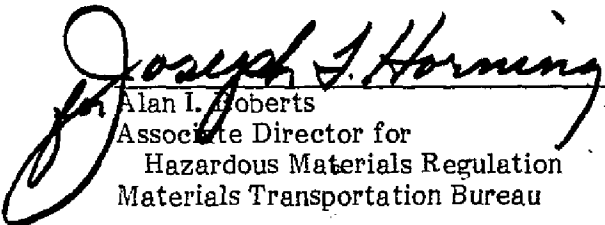
b. A copy of this exemption, kept current, must be carried aboard each vessel used to transport packages covered by this exemption.

c. The requirement for marking the outside of each package with the exemption number is waived for shipments in carload or truckload lots or in fully loaded freight containers.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. July 31, 1987.

Issued at Washington, D.C.:


Alan L. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

AUG 8 1985
(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA